

		given to the trustee: power to invest; power to loan to, buy from or sell to the Trust; power to borrow money and encumber Trust assets; and power to administer the Trust's real estate. The power to fund litigation is not included as a specific power. According to the preliminary paragraph of Article VI, the specific powers set forth are granted in addition to any powers conferred by law. Respondent seems to suggest Probate Code section 16004.5 gives him the power to maintain a litigation reserve. However, the reserve authorized by section 16004.5(b)(a) is for "taxes, debts, trustee and accounting fees, and costs and expenses of administration" not for litigation. Probate Code section 16247 empowers a trustee to hire attorneys to "advise or assist the trustee in the performance of administrative duties." Litigation is not an administrative power. In the absence of a trust provision specifically to the contrary, a trustee is not entitled to utilize trust funds to defend litigation when, as here, the dispute is "over who will enjoy the benefits and who will control the trust." (<i>Zahnleuter v. Mueller</i> (2023) 88 Cal.App.5th 474, 484.) Because the Trust does not grant Respondent the power to use Trust funds for this litigation and pursuant to Probate Code section 17206, the motion is GRANTED. Petitioner is directed to give notice.
2	Mills – Conservatorship; 30-2024-01388539	Motion for Attorney Fees Petitioner Zachary Tyler Mills's unopposed Motion for Payment of Family Law Attorney's Fees and Costs Pursuant to Probate Code § 2440(a)(4) is GRANTED in the amount of \$15,000.
3	Hernandez – Trust; 30-2022-01266339	Motion for Attorney Fees

		<i>CONTINUED to 08/25/26 at 10:00 am in Dept CM08.</i>
4	DSP/DNS – Trust; 30-2021-01197719	Demurrer Respondent Brad Perrin’s Demurrer to Post-Trial Petition (ROA 478) is OVERRULED. Respondent’s Requests for Judicial Notice (ROAs 482 & 489) are GRANTED as to Exhibits 1, 2, and 3. I. RELEVANT PROCEDURAL HISTORY This action arises out of David Perrin’s (Decedent) estate planning, including the creation of the DSP Trust dated August 29, 1985 and Restated on February 3, 2015 (DSP Trust). On March 30, 2021, Brad Perrin (Perrin), Decedent’s son and trustee of the DSP Trust, filed a petition against Sarah Jo Renner (Renner) relating to the DSP Trust. Perrin’s petition alleged Renner had committed financial elder abuse against Decedent, including an allegation (at ¶¶ 55-58) that Renner fraudulently and through undue influence procured a written \$1,000,000 distribution from the DSP Trust. (ROA 2 at 11:6-26.) Perrin sought a “determination that [Renner] take nothing from any testamentary documents that may have been executed by [Decedent] or from his Estate.” (ROA 2 at 13:23-24.) On October 25, 1995, Renner filed a verified answer (ROA 15) denying the allegations. (ROA 15.) On April 29, 2022, Renner filed a cross-complaint alleging, among other things, she had been named as a beneficiary on a life insurance policy taken out by Decedent in the amount of \$500,000 but Perrin had fraudulently altered the policy to name himself as beneficiary. On May 2, 2024, Perrin and Renner filed a joint list of controverted issues in connection with an upcoming trial date. (ROA 162.) In relevant part, the list identified the \$1,000,000 pecuniary gift as one of the controverted issues including, specifically, whether Perrin “is required to